

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30					1. REQUISITION NUMBER OCCR000699300		PAGE 1 OF 55																								
2. CONTRACT NO.			3. AWARD/ EFFECTIVE DATE		4. ORDER NUMBER			5. SOLICITATION NUMBER 2031JW26R00003		6. SOLICITATION ISSUE DATE 05/07/2026																					
7. FOR SOLICITATION INFORMATION CALL: 			a. NAME MATTHEW QUINN			b. TELEPHONE NUMBER (No collect calls)			8. OFFER DUE DATE/LOCAL TIME 05/22/2026 1700 ET																						
9. ISSUED BY Comptroller of the Currency Acquisitions Management 400 7TH STREET SW Washington DC 20219					CODE OCC		10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100.00 % FOR: ☐ SMALL BUSINESS ☒ WOMEN-OWNED SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☒ (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☐ EDWOSB NAICS: 561492 ☐ 8(A) SIZE STANDARD: \$19																								
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE			12. DISCOUNT TERMS			☐ 13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)			13b. RATING																						
15. DELIVER TO Multiple Destinations			CODE		16. ADMINISTERED BY Comptroller of the Currency Acquisitions Management 400 7TH STREET SW Washington DC 20219			CODE OCC		14. METHOD OF SOLICITATION ☒ RFQ ☐ IFB ☐ RFP																					
17a. CONTRACTOR/ OFFEROR			CODE		FACILITY CODE		18a. PAYMENT WILL BE MADE BY TELEPHONE NO.																								
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER					☐ 18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM																										
19. ITEM NO.												20. SCHEDULE OF SUPPLIES/SERVICES												21. QUANTITY		22. UNIT		23. UNIT PRICE		24. AMOUNT	
0001												Court Reporting and other required services in accordance with the Performance Work Statement. 1. Individual service quote pricing shall be in accordance with the Addendum A - Service Pricing table at the end of the continuation pages portion of this RFQ. 2. The CLIN contract type is Firm Fixed Unit Price at a "Not-To-Exceed (NTE)" total amount, meaning OCC will only pay for actual services (Use Reverse and/or Attach Additional Sheets as Necessary)												1		EA					
25. ACCOUNTING AND APPROPRIATION DATA												26. TOTAL AWARD AMOUNT (For Govt. Use Only)																			
☐ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED.												☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED.																			
☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN _____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.												☐ 29. AWARD OF CONTRACT: _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:																			
30a. SIGNATURE OF OFFEROR/CONTRACTOR												31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)																			
30b. NAME AND TITLE OF SIGNER (Type or print)												30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (Type or print) JOEY BARDEN						31c. DATE SIGNED											

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
0002	rendered at the unit prices agreed to and incorporated into the Addendum A - Service Pricing table up to the total funded amount/price of this CLIN in the eventual contract. 3. Under no circumstance shall the Contractor provide services, that in aggregate, exceed the total price of this CLIN. Delivery Location Code: OCC-DCOC45 HEADQUARTERS BUILDING #4 400 7TH STREET, SW WASHINGTON DC 20024 US Period of Performance: 07/01/2026 to 06/30/2027 Videographer services in accordance with the Performance Work Statement. 1. Individual service quote pricing shall be in accordance with the Addendum A - Service Pricing table at the end of the continuation pages portion of this RFQ. 2. The CLIN contract type is Labor Hour at a "Not-To-Exceed (NTE)" total amount, meaning OCC will only pay for actual services rendered at the unit prices agreed to and incorporated into the Addendum A - Service Pricing table up to the total funded amount/price of this CLIN in the eventual contract. 3. Under no circumstance shall the Contractor Continued ...	24	HR		

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE			32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
			32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL			☐ COMPLETE ☐ PARTIAL ☐ FINAL	
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY		
41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY (<i>Print</i>)		
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER		41c. DATE	42b. RECEIVED AT (<i>Location</i>)	
			42c. DATE REC'D (YY/MM/DD)	42d. TOTAL CONTAINERS

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REFERENCE NO. OF DOCUMENT BEING CONTINUED

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NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
1001	provide services, that in aggregate, exceed the total price of this CLIN. Delivery Location Code: DCOC45 DCOC45 400 7TH STREET, SW WASHINGTON DC 20024 US Period of Performance: 07/01/2026 to 06/30/2027 OPTION PERIOD ONE (1), See FAR Clause 52.217-9 "Option to Extend the Term of the Contract" Court Reporting and other required services in accordance with the Performance Work Statement. 1. Individual service quote pricing shall be in accordance with the Addendum A - Service Pricing table at the end of the continuation pages portion of this RFQ. 2. The CLIN contract type is Firm Fixed Unit Price at a "Not-To-Exceed (NTE)" total amount, meaning OCC will only pay for actual services rendered at the unit prices agreed to and incorporated into the Addendum A - Service Pricing table up to the total funded amount/price of this CLIN in the eventual contract. 3. Under no circumstance shall the Contractor provide services, that in aggregate, exceed the total price of this CLIN. (Option Line Item) Period of Performance: 07/01/2027 to 06/30/2028	1	EA		
1002	OPTION PERIOD ONE (1), See FAR Clause 52.217-9 "Option to Extend the Term of the Contract" Videographer services in accordance with the Performance Work Statement. 1. Individual service quote pricing shall be in accordance with the Addendum A - Service Pricing table at the end of the continuation pages portion of this RFQ. 2. The CLIN contract type is Labor Hour at a "Not-To-Exceed (NTE)" total amount, meaning OCC will only pay for actual services rendered at the unit prices agreed to and incorporated into the Addendum A - Service Pricing table up to the total funded amount/price of this CLIN in the eventual contract. Continued ...	24	HR		

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REFERENCE NO. OF DOCUMENT BEING CONTINUED
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NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
2001	3. Under no circumstance shall the Contractor provide services, that in aggregate, exceed the total price of this CLIN. (Option Line Item) Period of Performance: 07/01/2027 to 06/30/2028 OPTION PERIOD TWO (2), See FAR Clause 52.217-9 "Option to Extend the Term of the Contract" Court Reporting and other required services in accordance with the Performance Work Statement. 1. Individual service quote pricing shall be in accordance with the Addendum A - Service Pricing table at the end of the continuation pages portion of this RFQ. 2. The CLIN contract type is Firm Fixed Unit Price at a "Not-To-Exceed (NTE)" total amount, meaning OCC will only pay for actual services rendered at the unit prices agreed to and incorporated into the Addendum A - Service Pricing table up to the total funded amount/price of this CLIN in the eventual contract. 3. Under no circumstance shall the Contractor provide services, that in aggregate, exceed the total price of this CLIN. (Option Line Item) Period of Performance: 07/01/2028 to 06/30/2029	1	EA		
2002	OPTION PERIOD TWO (2), See FAR Clause 52.217-9 "Option to Extend the Term of the Contract" Videographer services in accordance with the Performance Work Statement. 1. Individual service quote pricing shall be in accordance with the Addendum A - Service Pricing table at the end of the continuation pages portion of this RFQ. 2. The CLIN contract type is Labor Hour at a "Not-To-Exceed (NTE)" total amount, meaning OCC will only pay for actual services rendered at the unit prices agreed to and incorporated into the Addendum A - Service Pricing table up to the total funded amount/price of this CLIN in the eventual contract. 3. Under no circumstance shall the Contractor provide services, that in aggregate, exceed the total price of this CLIN. Continued ...	24	HR		

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REFERENCE NO. OF DOCUMENT BEING CONTINUED
2031JW26R00003PAGE OF
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NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
3001	(Option Line Item) Period of Performance: 07/01/2028 to 06/30/2029 OPTION PERIOD THREE (3), See FAR Clause 52.217-9 "Option to Extend the Term of the Contract" Court Reporting and other required services in accordance with the Performance Work Statement. 1. Individual service quote pricing shall be in accordance with the Addendum A - Service Pricing table at the end of the continuation pages portion of this RFQ. 2. The CLIN contract type is Firm Fixed Unit Price at a "Not-To-Exceed (NTE)" total amount, meaning OCC will only pay for actual services rendered at the unit prices agreed to and incorporated into the Addendum A - Service Pricing table up to the total funded amount/price of this CLIN in the eventual contract. 3. Under no circumstance shall the Contractor provide services, that in aggregate, exceed the total price of this CLIN. (Option Line Item) Period of Performance: 07/01/2029 to 06/30/2030	1	EA		
3002	OPTION PERIOD THREE (3), See FAR Clause 52.217-9 "Option to Extend the Term of the Contract" Videographer services in accordance with the Performance Work Statement. 1. Individual service quote pricing shall be in accordance with the Addendum A - Service Pricing table at the end of the continuation pages portion of this RFQ. 2. The CLIN contract type is Labor Hour at a "Not-To-Exceed (NTE)" total amount, meaning OCC will only pay for actual services rendered at the unit prices agreed to and incorporated into the Addendum A - Service Pricing table up to the total funded amount/price of this CLIN in the eventual contract. 3. Under no circumstance shall the Contractor provide services, that in aggregate, exceed the total price of this CLIN. (Option Line Item) Period of Performance: 07/01/2029 to 06/30/2030 Continued ...	24	HR		

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REFERENCE NO. OF DOCUMENT BEING CONTINUED
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NAME OF OFFEROR OR CONTRACTOR

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
4001	OPTION PERIOD FOUR (4), See FAR Clause 52.217-9 "Option to Extend the Term of the Contract" Court Reporting and other required services in accordance with the Performance Work Statement. 1. Individual service quote pricing shall be in accordance with the Addendum A - Service Pricing table at the end of the continuation pages portion of this RFQ. 2. The CLIN contract type is Firm Fixed Unit Price at a "Not-To-Exceed (NTE)" total amount, meaning OCC will only pay for actual services rendered at the unit prices agreed to and incorporated into the Addendum A - Service Pricing table up to the total funded amount/price of this CLIN in the eventual contract. 3. Under no circumstance shall the Contractor provide services, that in aggregate, exceed the total price of this CLIN. (Option Line Item) Period of Performance: 07/01/2030 to 06/30/2031	1	EA		
4002	OPTION PERIOD FOUR (4), See FAR Clause 52.217-9 "Option to Extend the Term of the Contract" Videographer services in accordance with the Performance Work Statement. 1. Individual service quote pricing shall be in accordance with the Addendum A - Service Pricing table at the end of the continuation pages portion of this RFQ. 2. The CLIN contract type is Labor Hour at a "Not-To-Exceed (NTE)" total amount, meaning OCC will only pay for actual services rendered at the unit prices agreed to and incorporated into the Addendum A - Service Pricing table up to the total funded amount/price of this CLIN in the eventual contract. 3. Under no circumstance shall the Contractor provide services, that in aggregate, exceed the total price of this CLIN. (Option Line Item) Period of Performance: 07/01/2030 to 06/30/2031	24	HR		

PART I - SUPPLIES OR SERVICES AND PRICES/COSTS**1.0. GENERAL**

This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with FAR Part 12. This announcement constitutes the only solicitation. Offers are being requested and a separate written solicitation will not be issued. Solicitation number 2031JW26R00003 is issued as a Request for Quotation (RFQ) for follow-on nationwide court reporting services, including digital court reporting, stenotype, videographer, and virtual court reporting services.

This acquisition is set-aside for women-owned small business concerns. This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

This RFQ is issued under NAICS code 561492 “Court Reporting and Stenotype Services”. The small business size standard is an annual revenue of \$34M. FAR provision 52.212-1, Instructions to Quoters – Commercial Items (DEVIATION, November 2025) applies to this RFQ and is tailored and included in Part IV – Solicitation Provisions, Instructions, and Evaluation of Quotations below. Additionally, this provision is supplemented by Section 24.3 Instructions to Quoters under Part IV. Line item numbers and items, descriptions, quantities, units of measure, and options can be found in this document. FAR clause 52.212-4, Terms and Conditions – Commercial Products and Commercial Services applies to this acquisition with any addendum noted in this document. This document may contain additional contract requirements or terms and conditions determined by the Contracting Officer (CO) to be necessary for this acquisition and consistent with customary commercial practices. All quotations submitted for this solicitation are due no later than May 21, 2026 at 5:00 PM, Eastern Time.

The point of contact and Contracting specialist for this solicitation is Matthew Quinn at matthew.quinn@occ.treas.gov.

Quoters are advised that wage rate determinations for local areas can be found at <https://sam.gov>. FAR clause 52.222-41 “Service Contract Labor Standards” is applicable and included by reference below in this RFQ.

1.1. TYPE OF CONTRACT

This is a hybrid contract containing both Labor Hour and Firm Fixed Unit Price (FFUP) line items.

1.2. LINE-ITEM NUMBER DESCRIPTION

The unit price, when listed as an hourly rate, represents the fully burdened hourly rate for any listed labor category. The fully burdened labor rates include all direct, indirect, general and

administrative costs, profit associated with providing the required skill, and any travel required; travel will not be reimbursed by the Government.

PART II - CLAUSES

2.0. CLAUSES

52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make the full text available. The full text of a clause may be accessed electronically at the following address:
<https://www.acquisition.gov>

(End Clause)

2.1. CLAUSES INCLUDED BY REFERENCE

52.203-6 RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT (JUN 2020) WITH ALTERNATE I (NOV 2021)
52.203-17 CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS (NOV 2023)
52.203-19 PROHIBITION ON REQUIRING CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS (JAN 2017)
52.204-13 SYSTEM FOR AWARD MANAGEMENT - MAINTENANCE (DEVIATION, APR 2026)
52.209-6 PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, OR PROPOSED FOR DEBARMENT (DEVIATION, APR 2026)
52.209-9 UPDATES OF PUBLICLY AVAILABLE INFORMATION REGARDING RESPONSIBILITY MATTERS (DEVIATION, APR 2026)
52.209-10 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS (DEVIATION, APR 2026)
52.212-4, CONTRACT TERMS AND CONDITIONS – COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION, APR 2026) WITH ALTERNATE I (DEVIATION, APR 2026)
52.216-31 TIME-AND-MATERIALS/LABOR-HOUR PROPOSAL REQUIREMENTS – COMMERCIAL ACQUISITION (NOV 2021)
52.219-6 NOTICE OF TOTAL SMALL BUSINESS SET-ASIDE (DEVIATION, APR 2026)
52.219-8 UTILIZATION OF SMALL BUSINESS CONCERNS (DEVIATION, APR 2026)
52.219-14 LIMITATIONS ON SUBCONTRACTING (DEVIATION, APR 2026)

52.222-3 CONVICT LABOR (DEVIATION, APR 2026)
52.222-35 EQUAL OPPORTUNITY FOR VETERANS (DEVIATION, APR 2026)
52.222-36 EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES (DEVIATION, APR 2026)
52.222-37 EMPLOYMENT REPORTS ON VETERANS (DEVIATION, APR 2026)
52.222-40 NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT (DEVIATION, APR 2026)
52.222-41 SERVICE CONTRACT LABOR STANDARDS (DEVIATION APR 2026)
52.222-42 STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES (DEVIATION, APR 2026)
52.222-43 FAIR LABOR STANDARDS ACT AND SERVICE CONTRACT LABOR STANDARDS—PRICE ADJUSTMENT (MULTIPLE YEAR AND OPTION CONTRACTS) (DEVIATION APR 2026)
52.222-49 SERVICE CONTRACT LABOR STANDARDS-PLACE OF PERFORMANCE UNKNOWN (MAY 2014)
52.222-50 COMBATING TRAFFICING IN PERSONS (DEVIATION, APR 2026)
52.222-54 EMPLOYMENT ELIGIBILITY VERIFICATION (DEVIATION, APR 2026)
52.222-62 PAID SICK LEAVE UNDER EXECUTIVE ORDER 13706 (DEVIATION, APR 2026)
52.223-23 SUSTAINABLE PRODUCTS AND SERVICES (DEVIATION, APR 2026)
52.224-3 PRIVACY TRAINING (JAN 2017)
52.226-8 ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024)
52.227-17 RIGHTS IN DATA-SPECIAL WORKS (DEC 2007)
52.229-12 TAX ON CERTAIN FOREIGN PROCUREMENTS (DEVIATION, APR 2026)
52.232-33 PAYMENT BY ELECTRONIC FUNDS TRANSFER—SYSTEM FOR AWARD MANAGEMENT (OCT 2018)
52.232-40, PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS (MAR 2023)
52.233-3 PROTEST AFTER AWARD (DEVIATION, APR 2026)
52.233-4 APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM (DEVIATION, APR 2026)
52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS (DEVIATION-AUG 2025)
52.240-93 BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS (DEVIATION-AUG 2025)

2.2. CLAUSES INCLUDED IN FULL TEXT

52.204-9 PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL (JAN 2011)

(a) The Contractor shall comply with agency personal identity verification procedures identified in the contract that implement homeland security presidential directive-12 (HSPD-12), office of management and budget (OMB) guidance m-05-24 and federal information processing standards publication (FIPS PUB) number 201.

(b) The Contractor shall account for all forms of government-provided identification issued to the Contractor employees in connection with performance under this contract. The Contractor shall return such identification to the issuing agency at the earliest of any of the following, unless otherwise determined by the government:

- (1) When no longer needed for contract performance.
- (2) Upon completion of the contractor employee's employment.
- (3) Upon contract completion or termination.

(c) The Contracting Officer may delay final payment under a contract if the Contractor fails to comply with these requirements.

(d) The Contractor shall insert the substance of this clause, including this paragraph (d), in all subcontracts when the subcontractor's employees are required to have routine physical access to a Federally-controlled facility and/or routine access to a Federally-controlled information system. It shall be the responsibility of the prime contractor to return such identification to the issuing agency in accordance with the terms set forth in paragraph (b) of this section, unless otherwise approved in writing by the Contracting Officer.

(End of clause)

52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 1 days.

(End of clause)

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

- (a) The Government may extend the term of this contract by written notice to the Contractor within 1 day of the expiration of the contract; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 30 days before the contract expires. The preliminary notice does not commit the Government to an extension.
- (b) If the Government exercises this option, the extended contract shall be considered to include this option clause.
- (c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 60 months.

(End of clause)

1052.210-70 (DTAR) CONTRACTOR PUBLICITY (APR 2015)

The Contractor, or any entity or representative acting on behalf of the Contractor, shall not refer to the supplies or services furnished pursuant to the provisions of this contract in any news release or commercial advertising, or in connection with any news release or commercial advertising, without first obtaining explicit written consent to do so from the Contracting Officer. Should any reference to such supplies or services appear in any news release or commercial advertising issued by or on behalf of the Contractor without the required consent, the Government shall consider institution of all remedies available under applicable law, including 31 U.S.C. 333, and this contract. Further, any violation of this clause may be considered as part of the evaluation of past performance.

(End of clause)

1052.222-70 (DTAR) MINORITY AND WOMEN INCLUSION (JAN 2016)

- (a) Contractor confirms its commitment to equal opportunity in employment and contracting. To implement this commitment, the Contractor shall ensure, to the maximum extent possible consistent with applicable law, the fair inclusion of minorities and women in its workforce. The Contractor shall insert the substance of this clause in all subcontracts awarded under this contract whose dollar value exceeds \$150,000. Within ten business days of a written request from the Contracting Officer, or such longer time as the Contracting Officer determines, and without any additional consideration required from the Agency, the Contractor shall provide documentation, satisfactory to the Agency, of the actions it (and as applicable, its subcontractors) has undertaken to demonstrate its good faith effort to comply with the aforementioned provisions. For purposes of this contract, ``good faith effort" may include actions by the Contractor intended to identify and, if present, remove barriers to minority and women employment or expansion of employment opportunities for minorities and women within its workforce. Efforts to remove such barriers may include, but are not limited to, recruiting minorities and women, providing job-related training, or other activity that could lead to those results.
- (b) The documentation requested by the Contracting Officer to demonstrate ``good faith effort" may include, but is not limited to, one or more of the following--

- (1) The total number of Contractor's employees, and the number of minority and women employees, by race, ethnicity, and gender (e.g., an EEO-1);
 - (2) A list of subcontract awards under the contract that includes: Dollar amount, date of award, and subcontractor's race, ethnicity, and/or gender ownership status;
 - (3) Information similar to that required in paragraph (b)(1) of this clause, with respect to each subcontractor; and/or
 - (4) The Contractor's plan to ensure that minorities and women have appropriate opportunities to enter and advance within its workforce, including outreach efforts.
- (c) Consistent with Section 342(c)(3) of the Dodd-Frank Wall Street Reform and Consumer Protection Act (Pub. L. 111-203) (Dodd-Frank Act), a failure to demonstrate to the Director of the Agency's Office of Minority and Women Inclusion such good faith efforts to include minorities and women in the Contractor's workforce (and as applicable, the workforce of its subcontractors), may result in termination of the contract for default, other contractual remedies, or referral to the Office of Federal Contract Compliance Programs (OFCCP). Compliance with this clause does not, however, necessarily satisfy the requirements of Executive Order 11246, as amended, nor does it preclude OFCCP compliance evaluations and/or enforcement actions undertaken pursuant to that Executive Order.
- (d) For purposes of this clause, the terms ``minority," ``minority-owned business," and ``women-owned business" shall have the meanings set forth in Section 342(g) of the Dodd-Frank Act. [81 FR 2760, Jan 19, 2016]

(End Clause)

1052.232-7003 (DTAR) ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (APR 2015)

(a) *Definitions.* As used in this clause—

- (1) “*Payment request*” means a bill, voucher, invoice, or request for contract financing payment with associated supporting documentation. The payment request must comply with the requirements identified in FAR 32.905(b), “Content of Invoices” and the applicable Payment clause included in this contract.
- (b) Except as provided in paragraph (c) of this clause, the Contractor shall submit payment requests electronically using the Invoice Processing Platform (IPP). Information regarding IPP, including IPP Customer Support contact information, is available at www.ipp.gov or any successor site.
- (c) The Contractor may submit payment requests using other than IPP only when the Contracting Officer authorizes alternate procedures in writing in accordance with Treasury procedures.

(d) If alternate payment procedures are authorized, the Contractor shall include a copy of the Contracting Officer's written authorization with each payment request.

(End of clause)

**1052.201-8000 (OCC) CONTRACTING OFFICER'S REPRESENTATIVE (COR)
DELEGATION AND AUTHORITY (DEC 2013)**

- a) The contracting officer's representative will be identified via separate letter to the contractor.
- b) Performance of work under this contract is subject to the technical direction of the COR, as delegated in writing. The term "technical direction" includes, without limitation, direction to the contractor that directs or redirects the labor effort, shifts the work between work areas or locations, fills in details and otherwise serves to ensure that tasks outlined in the work statement are accomplished satisfactorily.
- c) Technical direction must be within the scope of the specification(s)/work statement. The COR does NOT have authority to issue technical direction that:
 - a. changes any of the terms, conditions, or specification(s)/work statement of the contract;
 - b. in any manner causes an increase or decrease in the contract price, or the time required for contract performance;
 - c. interferes with the contractor's right to perform under the terms and conditions of the contract; or,
 - d. directs, supervises or otherwise controls the actions of the contractor's employees.
- d) Technical direction may be oral or in writing. The COR shall confirm oral direction in writing within five work days, with a copy to the contract administrator.
- e) The contractor shall proceed promptly with performance resulting from the technical direction issued by the COR. If, in the opinion of the contractor, any direction of the COR, falls within the limitations in (c), above, the contractor shall immediately notify the contracting officer no later than the beginning of the next Government work day.
- f) Failure of the contractor and the contracting officer to agree that technical direction is within the scope of the contract shall be subject to the terms of the clause entitled "Disputes".

(End of Clause)

**1052.204-8000 (OCC) – PROPER IDENTIFICATION OF CONTRACTOR PERSONNEL
(JUL 2024)**

- a) All contractor personnel shall provide proper identification in both oral and written communications. Oral communications include, but are not limited to, in-person, Teams, Zoom or other video and audio communications, and teleconference communications. Additionally, when calling into meetings contractor personnel shall identify that they are a contractor by stating their name followed by stating contractor support for their respective OCC business unit.
- b) For written communications, all contractor personnel shall use a signature block that includes identification as a contractor, the name of the contractor personnel's company, office telephone number, alternate contact (mobile) number (if applicable), and identification of the current assigned Contacting Officer Representative (COR) as stated in the contract.

Name:	[Insert Name]
Job Title:	[Insert Title] (Contractor)
Company Name:	[Insert Name of Company]
COR's Name:	[Insert Name of the current COR]
Telephone:	Office: (XXX) XXX-XXXX
Work Cell:	Mobile: (XXX) XXX-XXXX

(End of Clause)

**1052.204-8001 (OCC) CONTRACTOR'S COMMITMENT TO EQUAL OPPORTUNITY
AND CONTRACTING (MAY 2025)**

This clause applies to the contractor's compliance with Section 342(c)(2) of Dodd-Frank Wall Street Reform and Consumer Protection Act (PL 111-203) (Dodd-Frank).

The Contractor shall ensure, to the maximum extent possible consistent with applicable law, the fair inclusion of minorities and women in its workforce. The Contractor shall insert the substance of this clause in all subcontracts under this Contract when the dollar value exceeds \$150,000.

Within thirty (30) calendar days of a written request from the OCC's Office of Minority and Women Inclusion (OMWI), or such longer time as the OMWI determines, and without any additional consideration required from the Agency, the Contractor shall provide documentation, satisfactory to the Agency, of the actions it (and, as applicable, its subcontractors) has undertaken to demonstrate its good-faith efforts to comply with the aforementioned provisions.

For purposes of this contract, "good-faith efforts" may include actions by the contractor intended to identify and, if present, remove barriers to minority and women employment or expansion of employment opportunities for minorities and women within its workforce. Efforts to remove such barriers may include, but are not limited to, recruiting minorities and women, providing job-related training, or engaging in other activities that could lead to those results.

A failure to demonstrate to the OCC and the OMWI Director such good-faith efforts may result in the actions prescribed in Section 342(c)(3) of Dodd–Frank.

For purposes of this clause, the terms “minority,” “minority-owned business” and “women-owned business” shall have the meanings set forth in Section 342(g) of Dodd–Frank.

(End of Clause)

1052.204-8004 (OCC) CONTROLLED UNCLASSIFIED INFORMATION (SEP 2021)

- a) Because of the proprietary nature of such information, the contractor understands that work performed by and information released to the contractor is sensitive in nature and shall not be disclosed to anyone other than the Office of the Comptroller of the Currency (OCC) (Government) employees assigned to the contract and other contractor personnel the Government authorizes to receive the information. The contractor agrees to protect all Controlled Unclassified Information received by or provided to the contractor pursuant to this contract from unauthorized disclosure or use for as long as the information remains proprietary or controlled and further agrees that it will not use such information for any purpose other than that relating to the performance of this contract. For purposes of the contract, all information provided to or received by the contractor is deemed confidential and proprietary.
- b) The contractor shall execute and is responsible for having all of its employees, subcontractor employees, and agents working under the contract and/or having access to sensitive information under this contract execute a “Conditional Access to Controlled Unclassified Information Non-Disclosure Agreement.”, hereafter referred to as an NDA, provided as **Attachment A (provided at time of award)** to this contract. This NDA provides that Controlled Unclassified Information provided to the contractor or its employees, subcontractors, or agents, shall not, except as permitted in connection with the performance of the contract, be further disclosed or used without the prior written approval of the Government.
- c) Contractor employees processed in the Personnel and Administration Security System (PASS), will complete the NDA electronically.
- d) Contractor employees processed outside of PASS, will complete the attached hard copy NDA and submit to the Contracting Officer (CO).
- e) Executed copies of the NDA are required by each contractor employee, subcontractor employee or agent who will perform work on the contract before they can begin actual performance under the contract.

(End of Clause)

1052.242-8000 (OCC) EVALUATION OF CONTRACTOR PERFORMANCE (DEC 2010)

- a) The OCC will evaluate the contractor's performance after contract award. If this contract has option periods, interim evaluations will be conducted at the end of each option period and then a final evaluation report will be prepared at the completion of the entire contract. If this contract does not have renewal options, an evaluation will be conducted upon completion of the contract. Notwithstanding the preceding, the Contracting Officer may conduct evaluations more or less frequently, if the Contracting Officer deems appropriate.
- b) Evaluations will be conducted using an electronic format as established by Contractor Performance Assessment Reporting System (CPARS), an internet-based database of contractor performance information. The OCC will enter the information, gathered from the evaluation, into the CPARS.
- c) If the contractor responds to the evaluation, and the response rebuts any or all of the ratings, the Contracting Officer will attempt to reconcile the areas of disagreement with the contractor. If agreement cannot be reached, the evaluation and response shall be reviewed at a level higher than the Contracting Officer and a final evaluation will be issued by the reviewing official. If the reviewing official finds, either all or in part, against the contractor, the contractor's response shall become part of the final evaluation. The reviewing official's final decision shall not be subject to dispute under the terms and conditions of the Disputes clause or subject to resolution in accordance with the terms and conditions of the Alternative Dispute Resolution clause. The reviewing official will provide the contractor with a copy of the final evaluation.
- d) Any government agency authorized to access the Past Performance Information Retrieval System (PPIRS) database will be able to view the performance information related to this contract. Any government agency may also receive a copy the contractor's performance evaluation, and any associated comments, by contacting the OCC. The OCC will also, upon request, provide copies of any and all of the contractor's evaluations to the contractor.

(End of Clause)

1052.242-8002 (OCC) PERIOD OF PERFORMANCE (SEP 2012)

The base period of performance of this contract is from 07/01/2026 through 06/30/2027.

If exercised, the first option period/year will extend the contract period of performance from 07/01/2027 through 06/30/2028.

If exercised, the second option period/year will extend the contract period of performance from 07/01/2028 through 06/30/2029.

If exercised, the third option period/year will extend the contract period of performance from 07/01/2029 through 06/30/2030.

If exercised, the fourth option period/year will extend the contract period of performance from 07/01/2030 through 06/30/2031.

(End of Clause)

1052.243-8001 (OCC) AUTHORIZED CHANGES ONLY BY THE CONTRACTING OFFICER (SEP 2016)

- a) Except as specified in paragraph (b) below, no order, statement, or conduct of Government personnel who provide technical direction or in any other manner communicates with contractor personnel during the performance of this contract shall constitute a change under the “Changes” clause of this contract.
- b) The Contractor shall not comply with any order, direction or request of Government personnel unless it is issued in writing and signed by the Contracting Officer (CO) or is pursuant to specific authority otherwise included as a part of this contract.
- c) The CO is the only person authorized to approve changes in any of the requirements of this contract and notwithstanding provisions contained elsewhere in this contract, the said authority remains solely the CO's. In the event the Contractor effects any change at the direction of any person other than the CO, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in charges incurred as a result thereof. The primary CO will be identified via separate letter to the contractor. Any CO with appropriate warrant authority may direct changes through a modification to the contract.

(End of Clause)

PART III – DOCUMENTS, EXHIBITS, AND/OR ATTACHMENTS**PERFORMANCE WORK STATEMENT****3.0 BACKGROUND**

The Office of the Comptroller of the Currency (OCC) is an independent bureau of the U.S. Department of the Treasury headquartered in Washington, D.C., with offices nationwide. The OCC is responsible for chartering and regulating the country's national banks and federal savings associations. We ensure that the banks we supervise operate in a safe and sound manner, provide fair access to financial services, treat customers fairly, and comply with applicable laws and regulations.

4.0 SCOPE

The OCC requires nationwide court reporting services, including digital court reporting services, stenotype services, videographer services, and virtual court reporting services.

5.0 DEFINITIONS

- 5.1 Certified Court Reporter - Court reporters must be certified by their state or by a federal certifying organization (e.g., U.S. Court Reporters Association (USCRA) or National Court Reporters Association (NCRA)).
- 5.2 Proceeding – An event (litigation/legal actions occurring in a courtroom or other venue, depositions, sworn statements, arbitration hearings, personnel grievances and appeals, conference, and committee and public meetings) that requires verbatim transcripts.
- 5.3 Stenotype Services – Services within scope for which a court reporter is required to use a stenotype machine to produce a verbatim transcript.
- 5.4 Virtual Court Reporting Services – Services within scope supporting a proceeding that includes at least one participant (party, court reporter, attorney, deponent, etc.) who is not physically present in the same location as other participants and is transmitted via live, remote video. This service involves production of verbatim transcripts using either digital court reporting or stenotype services.
- 5.5 Telephonic Court Reporting – Services within scope that support a proceeding that includes at least one participant on the telephone.
- 5.6 Transcription Services – Services within scope that require recording a proceeding, transcribing the audio or video recording into a written transcript, and proofreading and delivering the transcript.

- 5.7 Videography Services – Services within scope that require producing a fair, true, accurate, and complete high definition (HD) video recording of a proceeding. Video standards and guidelines are identified in Section 11.7 of this PWS.
- 5.8 Nationwide – Throughout the 50 United States.
- 5.9 Controlled Unclassified Information (CUI) – Unclassified information created and used in the U.S. federal government that requires safeguarding based on laws, regulations, or government-wide policies.
- 5.10 Controlled Unclassified Information and Handling – Any use of CUI, including but not limited to marking, safeguarding, transporting, disseminating, re-using, and disposing of the information.
- 5.11 Contractor – The Contractor (legal business entity) that has entered into this contract with the Government.
- 5.12 Contracting Officer’s Representative (COR) – A Government employee who represents the government contracting officer in technical matters only. The COR is authorized to request services and provide technical direction within the scope of the contract. The COR is not authorized to request services outside the scope of the contract (see contract clause 1052.201-8000).
- 5.13 Person-in-Charge (PIC) – Presiding OCC attorney or the judge onsite during the proceeding, who has the authority during virtual hearings or at the location/site of the proceeding, to issue technical direction related to that proceeding. The PIC is not authorized to request services outside the scope of the contract or unrelated to the proceeding.
- 5.14 Realtime reporting (captioning) – To provide equal access to communication for some individuals who are deaf or hard-of-hearing. Captioning is real-time transcription of the spoken language. If this is requested, the OCC expects the Contractor to provide a single participant to provide captioning and the requested transcription service(s).

6.0 SERVICE DELIVERABLES

- 6.1 If the request for service placed by the COR covers more than one event and each event requires a separate transcript, then each event is a separate proceeding.
- 6.2 The Contractor must provide a certified court reporter to fulfill the ordered services identified in this contract. The COR will specify when requesting services whether the court reporter is to attend in person or virtually.
- 6.3 The court reporter must have the authority to administer oaths and must do so when requested.

- 6.4 The Contractor must use its own devices and network connections to access OCC-provided technology (e.g., Zoom or Teams) for the audiovisual and document sharing platform(s) to conduct remote proceedings. The Contractor's network connections must be sufficient to maintain attendance without disruption.
- 6.5 All court reporting services must include one (1) original certified electronic version of the transcript;
- 6.6 In addition to the electronic transcripts, when the COR requests videography or virtual court reporting services, a minimum order must include one (1) certified video recording of the proceeding synchronized to the transcript. If requested by the COR, the synchronized transcript and video (in one file) must be suitable for loading into the Government's transcript management software (Relativity). Video standards and guidelines are identified in Section 11.7 of this PWS. The video recording must be of the witness for the duration of the proceeding, unless the Contractor uses equipment that allows for video of all participants.
- 6.7 In addition to the electronic transcripts, when OCC requests stenotype services, a minimum order must include one (1) rough transcript in American Standard Code for Information Interchange (ASCII) format provided within 24 hours of the completion of the proceeding.
- 6.8 In addition to the electronic transcripts, the Contractor must, upon the COR's request, deliver a paper version of the original certified transcript and/or additional paper/hard copies of transcripts or exhibits to an address or addresses provided by the COR. Delivery costs are not paid separately by the OCC.
- 6.9 In addition to the electronic transcripts, the Contractor must, upon the COR's request, deliver one (1) electronic version suitable for loading into the Government's transcript management software (see Section 11.6 for specifications).
- 6.10 When requested by the COR, the Contractor must provide real-time translation (captioning). Because this service requires special equipment, the request from the COR will be in advance and will only be requested when necessary for a deaf or hard-of-hearing participant.

7.0 REQUESTS FOR SERVICES

- 7.1 The COR will request transcription and videography services as needed. The Contractor will accept and service all requests that are placed by 5:00 p.m. Eastern Time (ET) at least three (3) business days in advance of a proceeding's scheduled start day; Table 1, below, is provided as a reference regarding this.

Table 1 – Request Notice

3 Business Days Ahead	Start Day of Service
Wednesday by 5:00 p.m. ET of preceding week	Monday
Thursday by 5:00 p.m. ET of preceding week	Tuesday
Friday by 5:00 p.m. ET of preceding week	Wednesday
Monday by 5:00 p.m. ET of same week	Thursday
Tuesday by 5:00 p.m. ET of same week	Friday

- 7.2 The Contractor is not required, but will make a reasonable effort, to accept and service any request for which the minimum three (3) business days advance notification requirement is not met.
- 7.3 For timely orders, the Contractor must provide the name and contact information (e-mail address and telephone number) for the assigned court reporter to the COR by 5:00 p.m. ET two (2) business days before the proceeding.
- 7.4 For orders the Contractor accepts with shorter notice, the Contractor must provide the name and contact information (e-mail address and phone number) for the court reporter to the COR as soon as it is available. Once the Contractor accepts services for which the minimum notice was not met, the Contractor is obligated to perform (i.e., the reasonable efforts standard from Section 7.2 no longer applies after the Contractor accepts the work).
- 7.5 The COR will provide the following information, in writing, when placing a request for services:
- 7.5.1 Location of proceeding;
 - 7.5.2 Date and time of proceeding;
 - 7.5.3 Approximate duration of proceeding;
 - 7.5.4 Each type of service required;
 - 7.5.5 Delivery type of transcript order needed (regular, intermediate, etc., as defined in Section 8.3);
 - 7.5.6 Name of the OCC attorney(s) present
 - 7.5.7 Name and phone number of the point of contact (POC);
 - 7.5.8 Whether or not the proceeding is private or public;
 - 7.5.9 For virtual proceedings, virtual meeting information/invitation; and

- 7.5.10 For in-person proceedings, the name of the PIC who will be onsite during the proceeding (note: in addition to the PIC identified by the COR, a judge [administrative or judicial] is always considered to have the authority of a PIC).

7.6 Cancellation and Attendance Fee

- 7.6.1 The OCC will notify the Contractor of any cancellations no later than 5:00 p.m. ET the day before the scheduled proceeding. If the OCC does not notify the Contractor by this time, and the proceeding is canceled before it begins, the Contractor may request the per proceeding cancellation fee, which will be the same amount as one-day's attendance.
- 7.6.2 If a proceeding begins, but is canceled, postponed, or concluded at any time during the first day, the OCC will pay the Contractor the one-day attendance fee and the fees for any transcripts, videos, etc. produced from the day's proceedings.

8.0 DELIVERY REQUIREMENTS

- 8.1 The Contractor must provide, via encrypted email, secure electronic file transfer (electronic deliverables), or courier (paper deliverables):
- 8.1.1 An original certified electronic version of the transcript, see Section 11.5 of this PWS for technical requirements;
 - 8.1.2 All exhibits, if applicable, see section 12.0 of this PWS for technical requirements;
 - 8.1.3 A certified video recording synched to the certified electronic transcript, if the OCC requested videography, see Section 11.7 of this PWS for technical requirements;
 - 8.1.4 A plain text (.txt file extension) version, if requested, suitable for loading into the Government's transcript management software, see Section 11.6 of this PWS for technical requirements; and
 - 8.1.5 A paper copy, if requested, see Section 11.1 of this PWS for technical requirements.
- 8.2 The delivery period begins the first day after the proceeding concludes (inclusive) and ends according to the schedule in Section 8.3 below. If the last day is a Saturday, Sunday, or federal holiday, the delivery period will end the next business day.
- 8.3 The Contractor must provide transcripts according to one of the following delivery schedules, which will be specified by the COR at the time the request is placed. All deliveries must occur between 8:30 a.m. and 5:00 p.m. ET, unless otherwise allowed

by the COR. The OCC will not directly/separately reimburse for postage or other delivery costs.

- 8.3.1 Regular Order: must be delivered within 20 calendar days of the conclusion of a proceeding.
- 8.3.2 Intermediate Order: must be delivered within 10 calendar days of the conclusion of a proceeding.
- 8.3.3 Expedited Order: must be delivered within five (5) calendar days of the conclusion of a proceeding.
- 8.3.4 Overnight Order: must be delivered by 9:30 a.m. ET on the day following the proceeding.
- 8.4 If the OCC requests a paper copy in the initial request, the schedule in Section 8.3 must be followed. If the OCC requests a paper copy after the initial request the Contractor must provide the paper copy within five (5) business days of the request (five-day count begins the day after the request).
- 8.5 The following Federal Holidays are observed:

New Year's Day*	January 1
Martin L. King, Jr's Birthday	Third Monday in January
Washington's Birthday	Third Monday in February
Memorial Day	Last Monday in May
Juneteenth*	June 19
Independence Day*	July 4
Labor Day	First Monday in September
Columbus Day	Second Monday in October
Veterans Day*	November 11
Thanksgiving Day	Fourth Thursday in November
Christmas Day*	December 25

*Holidays that fall on Saturday are observed on Friday and holidays that fall on Sunday are observed on Monday.

Additionally, should a President of the United States proclaim an additional federal holiday (e.g., Christmas Eve) or close Government Offices (does not include closing due to inclement weather), that day will also be considered a federal holiday.

9.0 ON-SITE AT A PROCEEDING

- 9.1 The Contractor must be set up and ready to begin on the date and at the start time designated for the proceeding.

- 9.2 For any proceeding that requires the court reporter to be physically present, the Contractor's personnel must present themselves to the PIC upon arriving at the proceeding. The PIC and/or COR will instruct the Contractor's personnel during the proceeding, consistent with the terms and conditions of this contract.

10.0 RECORDING METHODS

- 10.1 The Contractor must use a recording method that is legally sufficient for the U. S. District Court; regardless of location, venue, and/or jurisdiction; unless OCC requests a different method.
- 10.2 If the Contractor uses electronic sound recording devices, each device's quality must ensure against error, misinterpretation, or loss of voice. Equipment used by the Contractor must include simultaneous playback, listening, and speaker identification facilities, and must be monitored by the Contractor to ensure proper recording.
- 10.3 The Contractor must ensure that a backup recording system is available, operational, and in use in the event of problems with the primary system. There must be no break in recording during transfer to the backup system.

11.0 TRANSCRIPT SPECIFICATIONS

11.1 Formatting

- 11.1.1 Transcripts must be in upper/lower case text;
- 11.1.2 Pages must be 8-1/2" x 11" with a top margin of 1/2", bottom margin of 1/2", a left margin of 1", and a right margin of 1/2";
- 11.1.3 Each page must have no fewer than 25 typed lines per page and no fewer than nine or ten characters to the typed inch;
- 11.1.4 Transcripts provided in paper/hard copy must be single-sided. The type must be 12-point font size, and the lines must be double-spaced;
- 11.1.5 Whenever testimony and/or speech is continuous, requiring more than one line, the typing must begin as close as possible to the left ruled marginal lines, with words properly hyphenated when necessary;
- 11.1.6 Numbers indicating each line of transcription upon each page (i.e., 1, 2, 3, ...) must be printed at the left marginal line of the original transcript;
- 11.1.7 Pagination of the transcript must be in a single series of consecutive numbering, regardless of the number of days of the proceeding;
- 11.1.8 Page numbers must be placed in the upper right-hand corner of each page;

- 11.1.9 Each hard copy of the transcript must be enclosed in a protective cover, as approved by the COR;
- 11.1.10 Each electronic or hard copy of the transcript must include a title page showing the name and docket number (if applicable) for the proceeding;
- 11.1.11 Each transcript must include one complete index of the speaker(s) and/or witness(es). The index must identify the exhibits by number and what party introduced them;
- 11.1.12 A word index must not be included at the end of the transcript and must not be included in the page count for billing; and
- 11.1.13 Paper copies, if the COR requests them, must be punched with three (3) holes at the left side; the upper and lower holes to be two (2) inches from the top and bottom of the page, third hole in the center of the resulting interval, and must be secured with a fastener.

11.2 Accuracy

- 11.2.1 The Contractor must provide complete transcripts that accurately replicate the full and complete verbatim record of the proceeding. The COR will review the initial submission of the transcript to evaluate the transcript for accuracy and acceptability. Acceptable quality levels are described in Section 19.0 of this PWS.
- 11.2.2 Where errors, including typographical, impact the accuracy of the verbatim record of the proceeding, the COR will require the Contractor to reproof the entire transcript, correct all errors found, and furnish a corrected transcript; the Contractor must comply with the COR's request. The Contractor must provide, at no cost to the OCC, the corrected transcript within five (5) calendar days for Regular, Intermediate, and Expedited orders; and within one (1) business day for Overnight orders, from the COR's notification to the Contractor (five-day count begins the day after the notification). Although the corrected transcript is required, resubmissions due to errors will not apply to Acceptable Quality Level (AQL) calculation described in Section 19.0.
- 11.2.3 Where the corrected transcript also includes errors, the Contractor will reproof the entire transcript, correct all errors found, and furnish a corrected transcript, at no cost to the OCC, within three calendar days (three-day count begins the day after the notification).

11.3 Authentication

- 11.3.1 Electronic Transcripts: The Contractor must place a signed and dated certification page at the end of the original electronic transcript to authenticate it. Unless the COR requests (in writing) a different format, the certification page must include the following paragraph:

"This is to certify that the attached proceedings before (name of judge) in the matter of: (Docket Number, if applicable), (Place of Proceeding), (Date of Proceeding) were held as herein appears, and that this is the original transcription thereof for the file of the Comptroller of the Currency."

- 11.3.2 Video Transcripts: The Contractor must authenticate all video recordings produced by the Contractor by placing a certification document signed and dated by the videographer that states:

"the recording constitutes the complete original/master recording; the recording has not been altered in any way while in the videographer's possession; and the recording is fair, true, accurate, and complete."

11.4 Copies

If requested by the OCC, the Contractor must provide, clearly legible copies of the transcript. The COR or contracting officer (CO) are the sole arbiters of whether a document is legible or not. If one or more copies are found to be illegible, the Contractor must, within five (5) calendar days of receipt of notification and without additional cost to the OCC, replace the illegible copies with clearly legible copies. Five-day count begins the day after the notification.

- 11.4.1 If printing CUI content that is produced for the OCC, the contractor will use printers or copiers that do not retain data. When hand-carrying or mailing, the contractor will use standard CUI coversheet (**Attachment A**) as warranted to prevent disclosure of hard copy documents with CUI. As of the date of contract initiation, the coversheet can be downloaded from <https://www.gsa.gov/system/files/SF901-18a.pdf>. No contract modification will be made if the Government Services Agency (GSA) relocates the form.

11.5 Electronic Transcripts Format

- 11.5.1 The Contractor must deliver electronic transcripts via secure electronic transfer (e.g., encrypted e-mail, secure file transfer protocol, downloadable from the Contractor's https web address). The original certified transcript must be in PDF format and the electronic working copy must be in ASCII format, unless the COR requests otherwise before the transcript is delivered. The original certified PDF version must be formatted to prevent editing. The electronic versions and all removable media must be protected in storage, in process, and during transmission – to include when being delivered by courier (i.e., at all times). See Section 21.2.5.2 for security requirements.

11.5.2 The electronic transcript must have identical pagination and content of any requested printed transcript as specified in Section 11.1 above and conform to the following specifications:

11.5.2.1 Only one (1) proceeding per file; and

11.5.2.2 The electronic transcript must be created with a unique file name as designated by the COR or PIC.

11.6 Electronic Transcripts Format for Loading to Transcription Software

11.6.1 Acceptable file formats (see section 11.6.2)

11.6.1.1 .txt (plain/ASCII text file)

11.6.1.2 .ptf

11.6.1.3 .xmptf

11.6.1.4 .rtf

11.6.1.5 .trn

11.6.1.6 .xmef

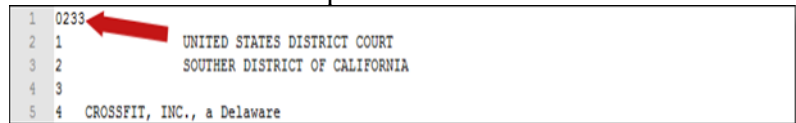
11.6.2 File Type/Format Constraints

11.6.2.1 .txt File Constraints

11.6.2.1.1 Transcripts application completes a header validation for .txt files. (see the attached sample .txt file as an example – **(Attachment B)**)

11.6.2.1.2 The first five lines of a text file must be one of the three options below:

11.6.2.1.2.1 Number space text



```
1 0233
2 1
3 2
4 3
5 4 CROSSFIT, INC., a Delaware
```

11.6.2.1.2.2 Number symbol space text

1	6=	
2	1=	
3	2=	Court NS : T-1439-02
4	3=	
5	4=	

11.6.2.1.2.3 Space number space text

1	Johnson, Frank - Vol. I
2	page 1
3	
4	1
5	2 SUPERIOR COURT OF THE STATE OF CALIFORNIA

11.6.2.2 .ptf File Constraints

11.6.2.2.1 .ptf files must have the same file format that includes the following three lines:

11.6.2.2.1.1 Begin=Head

11.6.2.2.1.2 Type=ptf

11.6.2.2.1.3 Begin=text

11.6.2.3 .xmptf File Constraints

11.6.2.3.1 .Xmptf files must have the same file format that includes the following three lines:

11.6.2.3.1.1 Begin=head

11.6.2.3.1.2 Type=ptf

11.6.2.3.1.3 Begin=text

11.6.2.3.2 To differentiate from .ptf files, these must also contain the following lines:

11.6.2.3.2.1 Linesnames=

11.6.2.3.2.2 Linetimestamps=

11.6.2.4 .rtf File Constraints

11.6.2.4.1 With .rtf files, all transcripts must contain one of the following headers:

11.6.2.4.1.1 \rtf1\ansi\ansicpg1252\uc1\deff0\stshfdbch0\stshfloch0\stshfhich0\stshfbi0\deflang1033\deflangfe1033

11.6.2.4.1.1.1 Transcript lines start on \fs22.

11.6.2.4.1.2 \rtf1\ansi\ansicpg1252\deff0\deflang1033

11.6.2.4.1.2.1 Transcript lines end on \line

11.6.2.5 .trn File Constraints

11.6.2.5.1 Transcripts application must support .trn files that adhere to the following requirements:

11.6.2.5.1.1 Start with an XML element;

11.6.2.5.1.2 Contain a <TRN> element;

11.6.2.5.1.3 Contain a <Transcript> element;

11.6.2.5.1.4 Contain a control character for line page divider

11.6.2.6 .xmef File Constraints

11.6.2.6.1 Transcripts application supports .xmef files that are a zip file and contain any of the following files:

11.6.2.6.1.1 .ptf;

11.6.2.6.1.2 .xmptf

11.6.2.6.1.3 .txt

11.7 Video Recordings

11.7.1 HD video recordings, synced to the transcript, must be delivered via an encrypted connection (e.g., email, secure electronic file transfer). The original certified synced transcript must be formatted to prevent editing. See Section 21.2 for security requirements. The electronic copy must conform to these specifications and be identical in content, with date/time stamps coordinated between video and transcript, to any requested printed transcript as specified in Section 11.1 above, including:

- 11.7.1.1 Each proceeding must be submitted separately; i.e., only one (1) proceeding will be submitted via each secure electronic transfer;
- 11.7.1.2 Exhibits/inserts, if requested, must be on the electronic version of the transcript;
- 11.7.1.3 The electronic transcript must have a unique file name, which will be provided by the COR or PIC;
- 11.7.1.4 If OCC requests to load video transcripts to its transcription software, each transcript must be synched to one (1) video file; i.e., one transcript cannot synch to multiple video files; transcripts synched to multiple video files are not supported.

12.0 EXHIBITS

- 12.1 The COR or PIC may direct the Contractor to copy exhibits into the record to accompany the transcripts. If so, the Contractor must:
 - 12.1.1 Mark and number or letter each exhibit and arrange exhibits in numerical/alphabetical order, unless specifically directed by the COR or PIC not to. The marking must indicate clearly who offered the exhibit;
 - 12.1.2 Identify each exhibit by number and title or description, indicating the page number on which the exhibit was identified and the page number on which the exhibit was admitted or rejected;
 - 12.1.3 Scan exhibits to PDF for non-virtual proceedings and provide them with the applicable transcript, regardless of the transcript format (electronic, paper);
 - 12.1.3.1 Electronic transcripts – The Contractor must include exhibits with the transcript.
 - 12.1.3.2 Paper transcripts - If the OCC requests a paper transcript with exhibits, the Contractor must ensure the exhibit(s) are made part of the transcript and securely bound or collected in a looseleaf binder with a list of exhibit numbers and respective titles or descriptions.
 - 12.1.4 Transmit the exhibits, securely if the proceeding is virtual, as directed by the COR or PIC. Examples are emailing the marked exhibits back to the attorney or including the exhibits with the transcript package to the COR.

13.0 COMPUTATION OF TIME

Whenever a proceeding is continued, recessed, or adjourned for a period of five (5) or more calendar days, that portion of the transcript of a proceeding held prior to such continuance,

recess, or adjournment must be considered a complete proceeding for the purpose of computing time for delivery of the transcript and pricing.

14.0 HOURS OF SERVICE

- 14.1 Proceedings are normally held between the hours of 8:00 a.m. and 6:00 p.m. Monday through Friday, local time, except holidays. However, the Contractor must work at a proceeding outside the hours of 8:00 a.m. and 6:00 p.m. Monday through Friday, upon request of the CO, COR, or PIC.
- 14.2 If the Contractor is required to attend proceedings outside of normal hours (e.g., Saturday, Sunday, federal holidays or from 6:00 p.m. to 8:00 a.m., Monday through Friday) the OCC will pay the Contractor the expedited transcript rate for the pages transcribed outside of normal hours. If an overnight transcript is required, the OCC will pay the Contractor for the pages transcribed outside of normal hours at the fixed, per-page price specified in the contract.

15.0 SALE OF TRANSCRIPT COPIES TO THE RESPONDENT AND GENERAL PUBLIC

- 15.1 The Contractor may sell copies of PUBLIC PROCEEDING transcripts (including linked video recording, where applicable) to the general public (defined as persons other than the OCC or Respondent) without prior approval from the CO or the COR. When a proceeding is designated as a PRIVATE PROCEEDING, the Contractor must only provide transcripts to the OCC and may only sell copies of the transcript to the Respondent or parties of the private hearing. The Contractor must assume the proceeding is private unless otherwise notified by the COR.
- 15.2 NOTE: During the course of an OCC investigation, the person being deposed is NOT entitled to a copy (purchased or otherwise) of the transcript or video of the proceeding. Requests related to investigations will include notification that the sworn statement is pursuant to order(s) of investigation. The Contractor may not make these transcripts available to any requesters, including respondents or their counsel or representatives.
- 15.3 The COR will notify the Contractor, prior to the proceeding, whether the proceeding is private or public. When the proceeding is private, the COR or CO will identify to whom the transcript copies may be sold. The Contractor must not sell a transcript to a witness without this notification from the CO or COR.

16.0 CONFLICT OF INTEREST

The Contractor, its agents, employees, and subcontractors (if any) must not have a conflict of interest related to the proceedings or with individuals involved in the proceedings. If a possible conflict of interest exists, the Contractor must immediately notify the COR.

17.0 LEGAL REQUIREMENTS AND PERMITS

The Contractor must obtain, at the Contractor's expense, all necessary licenses and permits, including a notary public license when necessary, and must conform to all laws, regulations, and ordinances applicable to performance of the contract.

18.0 POINT OF CONTACT

18.1 The Contractor must provide a Contract Administrator to serve as a single point of contact for the coordination of all contract activities (including requests for service). The Contractor must also designate an Alternate Contract Administrator to perform the duties in the Contract Administrator's absence.

18.2 The Contractor must notify the COR in writing when it intends to replace the Contract Administrator or Alternate Contract Administrator. The new Contract Administrator's e-mail address and phone number must be provided prior to replacing the old Contract Administrator or alternate.

19.0 PERFORMANCE REQUIREMENTS SUMMARY

The following deliverables are key performance factors for this requirement. The standards are set for each factor, and the measurement is the most likely surveillance method the OCC will use. The acceptable quality level (AQL) describes the level the Government will accept for each deliverable without rework or resubmission.

Section Reference	Deliverable/ Task	Quality Standard	Quality Assurance Method	Acceptable Quality Level
6.5 6.6 6.7 6.8 6.9	Transcript	Transcript will be in accordance with guidelines outlined in Section 11.0.	100% Inspection by PIC or COR	95% for each transcript ¹
8.2 8.3 8.4 8.5	Delivery of Order	Transcripts and Video recordings (when applicable) will be delivered on-time in accordance with Section 8.3.	100% Inspection by COR	100% of transcripts and video recordings

¹ The COR will review the initial submission of the transcript to evaluate the transcript for accuracy. Acceptable quality levels are described in Section 19.0. Although the corrected transcript is required, the COR's transcript accuracy performance evaluation, as described in Section 19.0, does not apply to the corrected transcript; i.e., performance standards in Section 19.0 are applied to the original submission only

Section Reference	Deliverable/ Task	Quality Standard	Quality Assurance Method	Acceptable Quality Level
6.0	Contractor on-site (when applicable) and ready to record at start of proceeding	Contractor will be set up and ready to begin on the date and time designated for the proceeding.	100% Inspection by the PIC	100% of proceedings
6.6	Video Recording	Video recording will be in accordance with guidelines outlined in Section 11.7.	100% Inspection by PIC or COR	100% of all video recordings
4.10	Real-time captioning	Proceeding participants who are deaf or hard-of-hearing are able to fully participate in proceedings	100% Inspection by PIC	98% total accuracy rate ²

20.0 IT Accessibility Requirements

20.1 Section 508 of the Rehabilitation Act, as amended by the Workforce Investment Act of 1998 (P.L. 105-220) requires that when Federal agencies develop, procure, maintain, or use information and communication technology (ICT), it shall be accessible to people with disabilities. Federal employees and members of the public who have disabilities must have access to, and use of, information and data that is comparable to people without disabilities. As such, the following requirements apply to this solicitation:

20.1.1 Written Deliverables. Reports, transcripts, depositions, court orders, sworn statements shall be produced as Section 508 compliant Microsoft Word or Adobe PDF documents. The format and structure of these written deliverables shall adhere with the OCC's *Guide for Crafting Section 508 Compliant Word/PDF Documents (Attachment C)*.

20.1.2 Video or Pre-recorded Media Deliverables. All deliverables that are, or contain, video, photo, or pre-recorded media of meetings, hearings, presentations, lectures, or panel discussions shall include content-relevant voice over or text captions throughout the deliverables.

² NCRA Broadcast and CART Captioning Committee; Guidelines for CART Captioners (Communication Access Realtime Translation Captioners), Revised October 2016. NCRA – National Court Reporters Association

21.0 IT SECURITY Requirements

21.1 Compliance with Applicable Laws, Regulations, and Standards

- 21.1.1 Federal Laws. The Contractor and all of its respective subcontractors will follow and remain compliant at all times with the Federal Acquisition Regulation (FAR); Privacy Act of 1974 (5 U.S.C. 552a - the Act); Federal Information Security Modernization Act of 2014 (Public Law 107-347) (FISMA); applicable laws, regulations, and government-wide policies requiring safeguarding and handling controls for OCC unclassified information; and the restrictions in 12 CFR Part 4, subpart C. At any time during which the Contractor remains in possession of property (information or otherwise) belonging to the OCC, the Contractor must not share any of it with any third party, except as provided for in 12 Code of Federal Regulations (CFR) 4.37(b).
- 21.1.2 FIPS. The Contractor and all of its respective subcontractors will follow FIPS, National Institute of Standards and Technology (NIST) standards and guidelines, and other laws, mandates, or Executive Orders pertaining to the protection of sensitive information and information systems.
- 21.1.3 OCC Policies and Procedures. The OCC understands that there are limitations in applying agency-specific policies to systems and environments shared with other organizations or customers. The requirements in this OCC Policies and Procedures subsection apply to all activities specifically performed for the OCC by the Contractor (e.g., professional services to develop or customize a component for the OCC). The intent of this section is to require contractor compliance with OCC policies and procedures for those activities, tasks, and deliverables specifically and uniquely performed and/or completed for the OCC by the Contractor that is not a typical service or component of the existing contractor system/solution. This section also applies to contractors with access to and use of OCC information resources (i.e., OCC network, systems, laptops, other IT equipment, and/or OCC information).

The Contractor and all of its respective subcontractors will comply with all OCC security and privacy policies and standards in effect at the time of the award of the contract, as well as those requirements that may be added during the contract.

The Contractor/service provider will conform to OCC administrative regulations, policies, and procedures in accordance with applicable federal laws, Executive Orders, directives, policies, regulations, standards, and guidance. The Contractor will work with OCC internal organizations, as needed, to ensure that policies, procedures, configuration control, and product life-cycle requirements are fulfilled to the satisfaction of OCC Information and Technology Services (ITS).

- 21.1.4 National Institute of Standards and Technology (NIST) SP 800-171. The Contractor and its respective subcontractors will ensure all components of contractor systems and organizations that process, store, and/or transmit OCC controlled unclassified information (CUI) or that provide protection for such components comply with the security requirements in NIST SP 800-171, *Protecting Controlled Unclassified Information in Nonfederal Systems and Organizations*. In addition, all CUI must be handled and safeguarded in accordance with 32 CFR Part 2002, applicable laws, regulations, or government-wide policies, and guidance provided by OCC related to CUI categories.
- 21.2 General Requirements
- 21.2.1 Location. Information collected, used, stored, maintained, or otherwise processed by the Contractor in the performance of this contract will be accessed, transferred, stored or processed only within the United States. In addition, the maintenance and support operations of the Contractor's technology and information must take place, and originate from, within the United States.
- 21.2.2 Authorization to Use, Store, or Share Sensitive Information. The Contractor is responsible for properly protecting all information used, gathered, or developed as a result of work under this contract. The Contractor will also protect all government data, equipment, etc. by treating the information as sensitive. Except for transcripts taken during proceedings that the OCC identifies as Public, all information gathered or created under this contract will be considered CUI. It is anticipated that this information will be gathered, created, and stored within the primary work location. If Contractor personnel must remove any information from the primary work area, they will protect it to the same extent they would their proprietary data and/or company trade secrets.
- 21.2.3 Confidentiality. The Contractor agrees to assume responsibility for protecting the confidentiality of government records and data associated with this contract, which are not public information, except for transcripts taken during proceedings that the OCC identifies as Public.
- 21.2.4 Non-Disclosure Agreement. Each individual who has access to sensitive OCC data and/or the OCC network, systems, applications, laptops, or other OCC information resources that may process, store or transmit sensitive OCC data under this contract will execute a Non-Disclosure Agreement (**Attachment D**) before being allowed such access.
- 21.2.5 Deliverables.

- 21.2.5.1 The deliverables in this contract will be considered CUI and will not be shared with any other organization without prior written approval from the CO and/or the COR. Per Section 15.0, the Contractor is authorized to sell copies of PUBLIC PROCEEDING transcripts (including linked video recording, where applicable) to the general public (defined as persons other than the OCC or Respondent) without prior approval from the CO or the COR.
- 21.2.5.2 The electronic versions and all removable media must be protected in storage, in process, and during transmission (i.e., at all times). The Contractor must protect data consistent with the latest versions of Federal Information Processing Standards (FIPS) 140-3 data encryption requirements and Office of Management and Budget (OMB) memoranda: OMB M-17-12 *Preparing for and Responding to a Breach of Personally Identifiable Information*; OMB M-21-04 *Modernizing Access to and Consent for Disclosure of Records Subject to the Privacy Act*; and OMB M-23-03 *Fiscal Year 2023 Guidance on Federal Information Security and Privacy Management Requirements*.

21.3 Continuous Monitoring

Compliance Reviews and Audits. The Contractor will permit and support compliance reviews and audits under applicable laws to allow the OCC to meet legal and compliance obligations and will implement processes that allow visibility into the privacy and security controls employed and their effectiveness. The Contractor will provide the OCC or authorized designated officials with information requested by auditors in a timely manner, consistent with the respective auditor's deadline, in support of security compliance reviews and various annual audits, e.g., FISMA, Financial Statement Audit, A-123, etc.

21.4 Data Protection

- 21.4.1 General Use of controlled unclassified information (CUI). The Contractor will not use any CUI, including personally identifiable information (PII) (e.g., e-mail groups and lists), for any purpose other than those activities necessary to the performance of this contract.
- 21.4.1.1 Whether physical or digital CUI, and whether marked or not, the Contractor will apply required safeguards and controls. This includes security requirements to protect CUI on federal and non-federal systems.
- 21.4.1.2 The Contractor will understand, remain familiar and comply with standards for accessing, disseminating, handling, and safeguarding the CUI to which they are granted access, in accordance with 32 CFR Part 2002; applicable laws, regulations, and government-wide policies;

NIST SP 800-171, FISMA Moderate baseline standards, and guidance provided by OCC relative to categories of CUI.

- 21.4.1.3 Non-disclosure: The Contractor will not disclose any CUI to which they are granted access to anyone who, or anything that, is not also granted such access pursuant to an applicable lawful government purpose. The Contractor will understand responsibilities to protect and not disclose CUI except for, and to people with, an appropriate lawful government purpose. To determine whether someone or something is authorized access to CUI under their control or possession, pursuant to an applicable lawful government purpose, the Contractor will do so in accordance with 32 CFR Part 2002, OCC guidance, and applicable laws, regulations or government-wide policies.
- 21.4.1.4 Scope of CUI: The Contractor will understand that the CUI to which they are granted access includes any CUI created or used on behalf of or for the Government, received from the Government to maintain, handle, transmit, or use (e.g., for research, in derivative documents, etc.), or CUI originating from another source (such as CUI generated for the Government by another contractor or entity).
- 21.4.1.5 Training: The Contractor will complete and understand OCC CUI orientation training and initial and recurring OCC CUI training and applicable specific training concerning the nature and protection of the CUI to which they are provided access, including procedures to follow in confirming whether other people are approved to access it pursuant to an appropriate lawful government purpose.
- 21.4.1.6 Security/control: The Contractor will protect CUI to which they are granted access from unauthorized disclosure, in accordance with the terms of this contract, 32 CFR Part 2002, OCC guidance, and the laws, regulations or government-wide policies applicable to the categories of CUI to which granted access. This includes appropriate physical and digital safeguards:
- 21.4.1.6.1 Reasonably prevent unauthorized staff from observing or overhearing discussions of CUI
- 21.4.1.6.2 Use securable environments to protect from unauthorized physical access or disclosure
- 21.4.1.6.3 Keep under direct control or protect with at least one physical barrier if left unattended
- Lock computers/screens
 - Secure when leaving a work area
 - Lock in office (e.g., file cabinet drawer)

21.4.1.6.4 Only share, transmit, or transfer CUI to authorized holders, whether internal or external to OCC

21.4.1.6.5 Not leave CUI unattended

21.4.1.7 Reporting breaches: The Contractor will promptly report suspected or known unauthorized disclosure (intentional or inadvertent) to appropriate officials, in accordance with the guidance issued for CUI including privacy, whether or not personally involved. They will understand that anonymity will be preserved to the extent possible when reporting such violations.

21.4.1.7.1 Breach: If the Contractor violates the terms and conditions of this contract, such violation may result in cancellation of access to OCC information, and, depending upon the laws, regulations or government-wide policies that governs the CUI, may result in civil and criminal sanctions.

21.4.1.8 Time: The Contractor will understand all conditions and obligations imposed upon them by this contract and apply during the time granted access to CUI, and always thereafter while such information remains controlled. These conditions and obligations may no longer apply if explicitly released in writing by an authorized representative of OCC or the United States Government. The Contractor will notify the OCC if they expect a change in employment.

21.4.1.9 Destruction: Unless and until requested to do so by the OCC, the Contractor will not destroy CUI but, as applicable, inform appropriate OCC federal staff if destruction is recommended. Any destruction requires prior Records Management approval for disposition and use of appropriate destruction methods, and certification. Means used must make the sensitive CUI unreadable, indecipherable, and irrecoverable

21.4.2 Use of General Privacy information and PII Specific to this Contract's Scope of Work. The scope of work for this contract has specific business driven and functional requirements that involve PII, which is CUI and covered as part of the [General Privacy](#) CUI Category. The Contractor will only use PII obtained under this contract for purposes of the contract and will not collect or use such information for any other purpose. Like all CUI, the Contractor, contractor employees, and Subcontractors must physically secure PII when not in use and/or under the control of an authorized individual, and when in transit to prevent unauthorized access or loss. When PII is no longer needed or required to be retained under applicable government records retention policies, it must be destroyed through means that will make the sensitive PII unreadable, indecipherable, and irrecoverable. At expiration or termination of this

contract, the Contractor will turn over to the Government all sensitive PII obtained under the contract that the OCC did not approve for destruction.

21.4.3 In accordance with the latest version of OMB M-17-12 *Preparing for and Responding to a Breach of Personally Identifiable Information*, the Contractor and Subcontractor(s) will:

21.4.3.1 Properly encrypt PII in accordance with OMB Circular A-130 and standards identified in Section 21.2.5.2.

21.4.3.2 Complete regular training on how to identify and report a breach;

21.4.3.3 Maintain capabilities to determine what federal information was or could have been accessed and by whom, construct a timeline of user activity, determine methods and techniques used to access federal information, and identify the initial attack vector;

21.4.3.4 Allow for an inspection, investigation, forensic analysis, and any other action necessary to assist with responding to a breach;

21.4.3.5 Adhere to notification and reporting requirements specified in Section 21.5. "Incident Response" to effectively report and manage a suspected or confirmed breach as soon as possible (within 1 hour), consistent with the OCC's Incident Response Plan and US-CERT notification guidelines. Please note that a report of a breach will not, by itself, be interpreted as evidence that the Contractor or its Subcontractor failed to provide adequate safeguards for PII.

21.4.3.6 Use of Contractor Equipment. Use of contractor-owned laptops or other equipment (e.g., media storage devices, servers, etc.) to process, transmit, or store OCC information or to access the OCC network or other OCC information resources without OCC's formal approval is prohibited. This restriction does not apply to the use of non-OCC laptops or PCs to use OCC-approved virtual desktop infrastructure to remotely access the OCC network.

21.4.3.7 Contractor Equipment Approval. To obtain OCC's approval to process, store, or transmit OCC CUI on contractor equipment, the Contractor will provide written assurance of compliance with NIST SP 800-171 (as amended), Protecting Controlled Unclassified Information in Nonfederal Systems and Organizations, requirements for all contractor system and organization components that will process, store or transmit OCC CUI.

21.5 Incident Response

- 21.5.1 Notification. As required in 21.4.1.7, the Contractor must report all information security incidents that potentially or actually cause the compromise of OCC information, even if the Contractor believes the security incident may be limited, small, or insignificant with respect to OCC data or systems. The OCC will determine when the Contractor's reported security incident requires additional focus and attention.
- 21.5.1.1 Within one hour from the time the Contractor validates that an information security incident has occurred, the Contractor must report the security incident information to the OCC Cyber Defense Center (CDC): OSOC@occ.treas.gov; (202) 649-7930, regardless of day or time.
- 21.5.1.2 The Contractor must provide any supplementary information or reports related to a previously reported incident directly to the OCC CDC with the following text in the subject line of the email: "Supplementary Information/Report related to previously reported incident # [insert number to be provided by contractor]."
- 21.5.1.3 Do NOT include any CUI in the subject or body of any e-mail. To transmit CUI, use the latest version of FIPS 140-3 compliant encryption methods to protect CUI in attachments to email. Passwords must not be communicated in the same email as the attachment.
- 21.5.1.4 When notifying the OCC CDC, copy the Contracting Officer if possible or, if reporting by phone or Contracting Officer's email is not immediately available, contact the Contracting Officer immediately after reporting the incident to the OCC CDC.
- 21.6 Information Ownership
- 21.6.1 Government Access. The Government will retain unrestricted rights to government data. The OCC retains ownership of any user created/loaded data and deliverables (e.g., documents, applications, custom code, diagrams, workflows, data sets, etc.) hosted on contractor's equipment, systems, infrastructure, etc., as well as maintains the right to request full copies of these at any time. Transcripts taken during proceedings the OCC identifies as Public are excepted from OCC ownership.
- 21.6.2 Removal of OCC Data. The Contractor acknowledges the OCC's exclusive right of ownership of the information and at the termination of the contract, or upon request, the Contractor will transfer, return, and/or destroy all OCC data stored on its servers in accordance with NIST SP 800-88, *Guidelines for Media Sanitization*, as amended, and provide the OCC with certification of the destruction (**Attachment E**).

- 21.6.3 Documents and Deliverables. The preliminary and final OCC-specific deliverables and all associated working papers are the property of the U.S. Government. The Contractor will not release any information without the written consent of the Contracting Officer. All work papers, preliminary and final deliverables must be submitted to the COR at the conclusion of the contract in an acceptable and usable format, which may include the original format. Per the Section 15.0, the Contractor is authorized to sell copies of PUBLIC PROCEEDING transcripts (including linked video recording, where applicable) to the general public (defined as persons other than the OCC or Respondent) without prior approval from the CO or the COR.
- 21.6.4 eDiscovery. The Contractor must ensure data preservation requirements (i.e., halt destruction and maintain data the Contractor may not otherwise have to maintain) related to litigation holds are met. The Contractor will also ensure that metadata associated with litigation holds are preserved. Metadata is electronically-stored information that describes the history, tracking, or management of an electronic document. It is created automatically when a user creates, modifies, accesses, or takes other actions with respect to an electronic document.
- 21.6.5 The Contractor will provide immediate access to all government data and government-related data impacting government data for review or scan, or conduct of a forensic evaluation, and physical access to any contractor facility with government data.
- 21.7 System Access
- Government Right to Terminate Access. The OCC, at its discretion, may suspend or terminate access to any systems and/or facilities when an information security incident or other electronic access violation, use or misuse issue gives cause for such action. The suspension or termination may last until such time as OCC determines that the situation has been corrected or no longer exists.

22.0 Mandatory Staffing Plan and Monthly Contractor Workforce Reporting Deliverables

- 22.1 Quoters are required to comply with Treasury APU 26-01 in its' entirety. The Initial Staffing Plan (**Attachment F**) must be included with your submission. Upon award, the Monthly Workforce Report (**Attachment G**) is required to be submitted with your monthly invoice; however, submission is required monthly regardless of the award's actual billing cycle.

22.2 Deliverables Table

PWS Section	Description	Format	Frequency	Due Date
22.1	The Initial Staffing Plan (Attachment F)	Adobe PDF	One Final	Included in quote submission
22.1	Monthly Workforce Report Required Template (Attachment G)	Adobe PDF	Monthly after award	Monthly submitted in IPP with invoice

23.0 Attachments List

- A. Non-Disclosure Agreement
- B. SF901 CUI Coversheet
- C. Sample .txt File
- D. 508 Compliant Docs
- E. Certificate of Data Destruction
- F. Initial Staffing Plan Required Template
- G. Monthly Workforce Report Required Template
- H. Past Performance Survey

PART IV – SOLICITATION PROVISIONS, INSTRUCTIONS, AND EVALUATION OF QUOTATIONS
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24.0. PROVISIONS**52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)**

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):
<https://www.acquisition.gov>

(End Provision)

24.1. PROVISIONS INCORPORATED BY REFERENCE

52.203-11 CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS (SEP 2024)
52.203-18 PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS-REPRESENTATION (JAN 2017)
52.204-7 SYSTEM FOR AWARD MANAGEMENT - REGISTRATION (APR 2026)
52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)
52.229-11 TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND REPRESENTATION (JUN 2020)
52.240-90 SECURITY PROHIBITIONS AND EXCLUSIONS REPRESENTATIONS AND CERTIFICATIONS (DEVIATION-AUG 2025)

24.2. PROVISIONS INCORPORATED IN FULL TEXT**52.212-1 INSTRUCTIONS TO QUOTERS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (DEVIATION, NOV 2025)**

(a) North American Industry Classification System (NAICS) code and small business size standard. The NAICS code(s) and small business size standard(s) for this acquisition appear elsewhere in the solicitation. However, the small business size standard for a concern that submits a quote, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150

employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

- (1) Is set aside for small business and has a value above the simplified acquisition threshold;
- (2) Uses the HUBZone price evaluation preference regardless of dollar value, unless the quoter waives the price evaluation preference; or
- (3) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b) Submission of quotes. Submit quotes to the office specified in this solicitation at or before the exact time specified in this solicitation. Quotes may be submitted on the SF 1449, letterhead stationery, or as otherwise specified in the solicitation. As a minimum, quotes must show—

- (1) The solicitation number;
- (2) The time specified in the solicitation for receipt of quotes;
- (3) The name, address, and telephone number of the quoter;
- (4) A technical description of the items being quoted in sufficient detail to evaluate compliance with the requirements in the solicitation. This may include product literature, or other documents, if necessary;
- (5) Terms of any express warranty;
- (6) Price and any discount terms;
- (7) "Remit to" address, if different than mailing address;
- (8) A completed copy of the representations and certifications at Federal Acquisition Regulation (FAR) 52.212-3 (see FAR 52.212-3(b) for those representations and certifications that the quoter shall complete electronically);
- (9) Acknowledgment of Solicitation Amendments;
- (10) Past performance information, when included as an evaluation factor, to include recent and relevant contracts for the same or similar items and other references (including contract numbers, points of contact with telephone numbers and other relevant information); and
- (11) If the quote is not submitted on the SF 1449, include a statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation. Quotes

that fail to furnish required representations or information, or reject the terms and conditions of the solicitation may be excluded from consideration.

(c) Period for acceptance of quotes. The quoter agrees to hold the prices in its quote firm for 60 calendar days from the date specified for receipt of quotes, unless another time period is specified in an addendum to the solicitation.

(d) Product samples. When required by the solicitation, product samples shall be submitted at or prior to the time specified for receipt of quotes. Unless otherwise specified in this solicitation, these samples shall be submitted at no expense to the Government, and returned at the sender's request and expense, unless they are destroyed during preaward testing.

(e) Multiple quotes. Quoters are encouraged to submit multiple quotes presenting alternative terms and conditions, including alternative line items (provided that the alternative line items are consistent with FAR subpart 4.10), or alternative commercial products or commercial services for satisfying the requirements of this solicitation. Each quote submitted will be evaluated separately.

(f) Late submissions, modifications, revisions, and withdrawals of quotes. (1) Quoters are responsible for submitting quotes, and any modifications, revisions, or withdrawals, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that quotes or revisions are due.

(2) (i) Any quote, modification, revision, or withdrawal of a quote received at the Government office designated in the solicitation after the exact time specified for receipt of quotes is "late" and may not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late quote would not unduly delay the acquisition; and-

(A) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of quotes; or

(B) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of quotes and was under the Government's control prior to the time set for receipt of quotes; or

(C) If this solicitation is a request for proposals, it was the only proposal received.

(ii) However, a late modification of an otherwise successful quote, that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(3) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the quote wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(4) If an emergency or unanticipated event interrupts normal Government processes so that quotes cannot be received at the Government office designated for receipt of quotes by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of quotes will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(5) Quoters may be withdrawn by written notice received at any time before the exact time set for receipt of quotes. Oral quotes in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile quotes, quotes may be withdrawn via facsimile received at any time before the exact time set for receipt of quotes, subject to the conditions specified in the solicitation concerning facsimile quotes. A quote may be withdrawn in person by an offeror or its authorized representative if, before the exact time set for receipt of quotes, the identity of the person requesting withdrawal is established and the person signs a receipt for the quote.

(g) Contract award (not applicable to Invitation for Bids). The Government intends to evaluate quotes and award a contract without negotiations with quoters. Therefore, the quoter's initial quote should contain the offeror's best terms from a price and technical standpoint. However, the Government reserves the right to conduct negotiations if later determined by the Contracting Officer to be necessary. The Government may reject any or all quotes if such action is in the public interest; accept other than the lowest quote; and waive informalities and minor irregularities in quotes received.

(h) Multiple awards. The Government may accept any item or group of items of a quote, unless the offeror qualifies the quote by specific limitations. Unless otherwise provided in the Schedule, quotes may not be submitted for quantities less than those specified. The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit prices offered, unless the offeror specifies otherwise in the quote.

(i) Availability of requirements documents cited in the solicitation.

(1) (i) The GSA Index of Federal Specifications, Standards and Commercial Item Descriptions, FPMR Part 101–29, and copies of Federal specifications, standards, and product descriptions can be downloaded from the ASSIST website at <https://assist.dla.mil>.

(ii) If the General Services Administration, Department of Agriculture, or Department of Veterans Affairs issued this solicitation, a copy of specifications, standards, and commercial item descriptions cited in this solicitation may be obtained from the address in paragraph (i)(1)(i) of this provision.

(2) Most unclassified Defense specifications and standards may be downloaded from the ASSIST website at <https://assist.dla.mil>.

(3) Defense documents not available from the ASSIST website may be requested from the Defense Standardization Program Office by—

(i) Using the ASSIST feedback module (<https://assist.dla.mil/feedback>); or

(ii) Contacting the Defense Standardization Program Office by telephone at 571–767–6688 or email at assisthelp@dlamail.mil.

(4) Nongovernment (voluntary) standards must be obtained from the organization responsible for their preparation, publication, or maintenance.

(j) Unique entity identifier.(Applies to all quotes that exceed the micro-purchase threshold, and quotes at or below the micro-purchase threshold if the solicitation requires the Contractor to be registered in the System for Award Management (SAM).) The Quoter shall enter, in the block with its name and address on the cover page of its quote, the annotation "Unique Entity Identifier" followed by the unique entity identifier that identifies the Quoter's name and address. The Quoter also shall enter its Electronic Funds Transfer (EFT) indicator, if applicable. The EFT indicator is a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the Quoter to establish additional SAM records for identifying alternative EFT accounts (see FAR subpart 32.11) for the same entity. If the Quoter does not have a unique entity identifier, it should contact the entity designated at www.sam.gov for unique entity identifier establishment directly to obtain one. The Quoter should indicate that it is an offeror for a Government contract when contacting the entity designated at www.sam.gov for establishing the unique entity identifier.

(k) [Reserved]

(l) Debriefing. If a post-award debriefing is given to requesting quoters, the Government shall disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's quote.

(2) The overall evaluated cost or price and technical rating of the successful and the debriefed quoter and past performance information on the debriefed offeror.

(3) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award;

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

(6) Reasonable responses to relevant questions posed by the debriefed quoter as to whether source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

(End of provision)

52.217-5 EVALUATION OF OPTIONS (JUL 1990)

Except when it is determined in accordance with FAR 17.206(b) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

(End of provision)

24.3. INSTRUCTIONS TO QUOTERS

Quoters must submit their quotes in five (5) volumes as shown in sections 23.3.1. through 23.3.5., though all five (5) volumes may be in one document if clearly separated and identified.

Additionally, Quoters must submit a **cover page** for their quotations that includes the Quoter's: point of contact and alternate point of contact for the quotation (including phone numbers and e-mail addresses), business address, SAM.gov Unique Entity ID (UEI), and CAGE code.

24.3.1. Volume I – Corporate Experience.

Quoters must demonstrate their technical capability through their corporate experience. Quoters must provide three (3) recent (performed within the past 5 years) examples of experience that demonstrate the Quoter's ability to provide similar services as proposed for the Government. The examples of experience must be similar to the services and tools proposed for the Government with regard to breadth and depth as described in this solicitation's PWS. The examples must demonstrate the Quoter's ability to provide court reporting services (including digital court reporting services, stenotype services, videography services, and remote live video transmission services) all on a nationwide basis. The corporate experience examples can be drawn from contracts for services provided to federal agencies or non-government entities. In all of the examples, the Quoter must have been/be the prime contractor.

Quoters must describe the work performed and how it relates to their ability to provide court reporting services to the Government. Failure to articulate how the experience examples correlate to the work to be performed in this solicitation's PWS may result in an unfavorable evaluation. Each example must include the following: contract number; CO (if applicable); COR or commercial point of contact (as appropriate) and his or her

telephone number and email address; dollar value of the contract; period of performance; and a representation that the Quoter's contract tier was prime contractor. The Government reserves the right to contact any or all of a Quoter's references to interview them on the Quoter's submitted experience.

The Government will evaluate the number of states in which the Quoter has provided services under a nationwide contract, along with a brief description of its experience performing across multiple states.

Quotes must include the following information, when applicable to the referenced contract effort:

- The technical/operational details regarding the digital court reporting services.
- The technical/operational details regarding the steno services.
- The technical/operational details regarding the videography services.
- The technical/operational details regarding the remote live video transmission services.

Quotes should include details regarding the following information if applicable; however, this is not required:

- Experience with Equal Employment Opportunity Commission and/or Merit Systems Protection Board proceedings
- Experience with financial regulators or proceedings including financial regulation/transaction terminology
- Experience with administrative hearing enforcement proceedings

Volume I must not exceed 15 pages in length and must be presented in a font similar in size and type to 11-point Times New Roman.

24.3.2. Volume II – Nationwide Approach

The Quoter must demonstrate its ability to fulfil the court reporting requirement on a nationwide basis by addressing the following:

- The number of court reporters, stenographers, videographers, and other relevant personnel directly employed by the Quoter, including identification of personnel who perform multiple functions and a description of those overlapping roles.
- The locations of the Quoter's offices from which its personnel may be deployed and an explanation of how those locations support nationwide performance.
- The Quoter's approach to providing services for proceedings located more than 50 miles from one of its offices, including how qualified personnel will be identified, assigned, and managed.
-
- The nature of the Quoter's contractual or business relationships with the individuals who will perform services under the contract, including whether such

individuals are employees, independent contractors, subcontractors, or engaged through another arrangement, and an explanation of how those relationships enable nationwide placement of qualified personnel.

Volume II must not exceed three pages in length and must be presented in a font similar in size and type to 11-point Times New Roman.

24.3.3. Volume III – Past Performance

Quoters must forward, for completion, the Past Performance Survey (**Attachment H**) to the three (3) CORs or commercial points of contact identified for the same contract efforts referenced in quotation Volume I. These surveys are due to this solicitation's Government point of contact (see PART I of this solicitation) no later than the specified deadline for submitting quotes in response to this RFQ. The surveys must be sent to this solicitation's Government point of contact via e-mail directly by the COR or commercial points of contact, not the Quoter. Quoters must not submit the completed surveys to the Government point of contact on behalf of their references. Volume III must not be submitted by the Quoter; the consolidated surveys received from the Quoter's references will be considered Volume III of the quotation. Missing or incomplete surveys may affect the evaluation of a submitted quotation. It is solely the Quoter's responsibility to ensure the surveys are received by the Government. The Government reserves the right to contact any or all of a Quoter's references to interview them on the Quoter's submitted past performance.

24.3.4. Volume IV – Pricing.

Quotes should be clearly and concisely written as well as neat, indexed (cross indexed as appropriate), and logically assembled. Pages should be appropriately numbered, and identified with the name of the Quoter, the date, and the RFQ number to the extent practicable. All material submitted should be directly pertinent to the requirements of this RFQ. The quote must provide pricing for all services required under this RFQ. Quoters must agree to hold the prices in their quotes firm for a minimum of 120 calendar days from the closing date of the solicitation.

Quoters must submit the following in Volume IV – Pricing of their quotations:

- A copy of the tables listing the line-items found in Addendum A – Service Pricing with all unit pricing, line-item total pricing, and base year/option year total pricing completely filled in. If any price is \$0.00, then the Quoter must fill in such information. Quoters must complete all pricing in the line-item blank cells of the tables, and the tables may not be altered (other than the prices filled in by each Quoter).
- Any pages and information included in this volume beyond the tables required in paragraph 1 of section 24.3.4. "Volume IV – Pricing" (above) will not be evaluated or considered by the Government.

24.3.5. Submission of Quotations and Late quotations. Quotations must be submitted by e-mail to the point of contact listed in PART I - SUPPLIES OR SERVICES AND PRICES/COSTS of this solicitation. Quoters are responsible for ensuring their quotations have been received. The Government may consider late quotations at the CO's sole discretion if the CO determines it to be in the best interest of the Government.

24.3.6. Quote Preparation Costs. This RFQ does not commit the Government to pay any cost for the preparation and submission of the quote in response to this RFQ. The CO is the only individual who can legally commit the Government to the expenditure of funds in connection with this procurement.

24.3.7. Integrity of Quotation. In responding to this RFQ, it is the Quoter's responsibility to provide current, complete and accurate information in its quotation. If in reviewing the quote the Government identifies or otherwise learns that the provided quotation information is not accurate or misrepresents the Quoter's status or capabilities, that information may be used by the CO as part of the Quoter's responsibility determination and could result in the Quoter not being eligible for award.

24.3.8. Questions and Answers. All questions from Quoters must be received via e-mail to the point of contact in PART I of this solicitation no later than May 14, 2026 at 5:00 PM, Eastern Time. The Government will respond to questions en masse using an amendment to this solicitation. If the government point of contact receives no questions, the Government will release no amendment addressing questions and answers or the lack thereof.

24.4. BASIS FOR AWARD

This procurement is conducted in accordance with FAR Part 12 on a best value basis that allows for a tradeoff between price and non-price related factors. The Government intends to award without negotiations but reserves the right to enter negotiations should they be in the best interest of the Government.

The OCC will evaluate corporate experience, nationwide approach, and past performance. The OCC will make a best-value determination using non-price and price factors. Non-price factors, when combined are more important than price. The Government reserves the right to perform a comparative evaluation and negotiate only with the best suited quoter if the CO determines it is in the best interest of the Government. The Government does not intend to perform a price realism analysis but reserves the right to do so if any Quoter's price is deemed prima facie unrealistic by the CO.

24.5. EVALUATION FACTORS

24.5.1. Corporate Experience. The Government will evaluate quotes to determine how similar the Quoter's experience is in breadth and depth when compared to the Government's requirement. Breadth is a measure of the completeness of the quote's

corporate experience volume experience examples when compared to the Government's requirement, specifically regarding whether the Quoter has experience in each of the major task areas (i.e., do the corporate experience examples cover the entirety of the Government's requirement or do they materially not include any important aspects of required performance). Depth is a measure of how similar the Quoter's corporate experience examples are to the Government's requirement in each of the major task areas.

Quoters that demonstrate the following may be evaluated more favorably under this factor:

- Experience with Equal Employment Opportunity Commission and/or Merit Systems Protection Board proceedings
- Experience with financial regulators or proceedings including financial regulation/transaction terminology
- Experience with administrative hearing enforcement proceedings

24.5.2. Nationwide Approach. The Government will evaluate nationwide approach volumes to determine the likelihood that the Quoter can successfully perform all required services in the Government's requirement on a nationwide basis.

24.5.3. Past Performance. The Government will evaluate past performance to determine whether a Quoter's past performance references are recent and relevant to the requirement. For purposes of this evaluation, recent means the past performance effort was performed entirely within the five years preceding the close of this solicitation, and relevant means the effort is similar to the services required under this requirement. Only past performance determined to be recent and relevant will be evaluated for the quality of the Quoter's performance. In assessing quality, the Government may consider information provided in past performance surveys, Government past performance databases, and any other legally obtained past performance information. The Government is not limited to any particular source of past performance information. In the case of a Quoter without a record of relevant past performance or for whom information on past performance is not available, the Quoter will not be evaluated favorably or unfavorably on past performance and therefore will receive a rating of "Neutral".

24.5.4. Price. OCC will use the total evaluated price as part of its best value tradeoff analysis. The total evaluated price will be the sum of the base period price plus the four options and up to a six-month extension under FAR 52.217-8. To evaluate the FAR 52.217-8 extension pricing, the OCC will take the option period four price and divide it by two, representing the maximum potential amount (six months). No award will be made based on any quote with a price that cannot be determined to be fair and reasonable. The OCC will evaluate quotes for unbalanced pricing. Quotes with unbalanced pricing without a reasonable rationale for it will not be considered for award.

24.6. QUOTER ASSUMPTIONS

Quoter assumptions, although not a separate evaluation factor, may be reviewed. Assumptions will be considered in the context of the evaluation factor to which they apply. Assumptions are made solely at the risk of the Quoter and are not implicitly or explicitly accepted as true by the Government. Quoters are encouraged to make effective use of the question-and-answer period on this solicitation to avoid making unreasonable and faulty assumptions.

24.7. INCORPORATION OF QUOTATIONS

Any resulting award will NOT (neither by reference nor in full text) incorporate any quotation in the resulting award. Any awarded contract shall stand on its own and represent the full agreement between the parties.

24.8. AWARD CONTINGENCY

Any award based on this RFQ is subject to further internal Department of the Treasury business clearances; the Government reserves the right not to award a contract based on this RFQ if the proposed award does not pass internal business clearances.

ADDENDUM A – SERVICE PRICING

****ALL QUANTITIES ARE ESTIMATES, ALL PRICES ARE FIRM, AND THIS TABLE IS THE SAME FOR EACH PERIOD OF PERFORMANCE ****

DESCRIPTION	ESTIMATED QUANTITY	UNIT	UNIT PRICE	TOTAL
Digital - Regular Order (20-Calendar Day Delivery)	9,000	Each		
Firm Fixed Unit Price per page				
Digital - Intermediate Order (10-Calendar Day Delivery)	3,000	Each		
Firm Fixed Unit Price per page				
Digital - Expedited Order (5-Calendar Day Delivery)	3,000	Each		
Firm Fixed Unit Price per page				
Digital - Overnight Order (Delivery by 9:30 a.m. Next Day)	3,000	Each		
Firm Fixed Unit Price per page				
Steno - Regular Order (20-Calendar Day Delivery)	100	Each		
Firm Fixed Unit Price per page				
Steno - Intermediate Order (10-Calendar Day Delivery)	2,500	Each		
Firm Fixed Unit Price per page				
Steno - Expedited Order (5-Calendar Day Delivery)	3,000	Each		
Firm Fixed Unit Price per page				
Steno - Overnight Order (Delivery by 9:30 a.m. Next Day)	3,000	Each		
Firm Fixed Unit Price per page				
Rough ASCII Transcript	6,000	Each		
Firm Fixed Unit Price per page				
Digital - Appearance Fee	75	Each		
Firm Fixed Unit Price per appearance				

Steno - Appearance Fee	75	Each		
Firm Fixed Unit Price per appearance				
Hard Copy of Transcript	1,000	Each		
Firm Fixed Unit Price per page				
Scanned Exhibit	10,000	Each		
Firm Fixed Unit Price per page				
Electronic transcript version with page and line numbers suitable for use in transcript management software. See PWS for details.	50	Each		
Firm Fixed Unit Price per electronic transcript version				
Service Videography Set-up Fee	3	Each		
Firm Fixed Unit Price per set-up				
Service Videographer	24	Hour		
Labor Hour				
Copy of video recording with voice and transcript sync	5	Each		
Firm Fixed Unit Price per copy				
Real-time reporting (optional task)	4,300	Each		
Firm Fixed Unit Price per page				